

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3344

By: Williams

AS INTRODUCED

An Act relating to foster care; providing requirements for persons applying to be foster parents; providing penalties for false or fraudulent application or information; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-7-111.1 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. Persons applying to be foster parents shall:

1. Be at least twenty-one (21) years of age;

2. Reside lawfully in the United States;

3. Have healthy relationships, whether married, single, separated, or divorced;

4. Have the ability to manage personal and household financial needs without relying on the foster care maintenance payment;

1 5. Earn at least one hundred one percent (101.00%) of the
2 Federal Poverty Level for the calendar year for the prospective
3 household size if a child or children were placed in the household;

4 6. Provide verification that all household members are in
5 sufficiently good physical and mental health to provide for the
6 individual needs of each child placed;

7 7. Provide a minimum of two (2) letters of recommendation from
8 respected and prominent individuals within the prospective foster
9 parent's or parents' community. Such persons may include, but shall
10 not be limited to, ministers, priests, and teachers as defined in
11 Section 1-116 of Title 70 of the Oklahoma Statutes;

12 8. Maintain a home that is adequately furnished and decorated,
13 maintained to a good standard of cleanliness and hygiene, and is in
14 good order throughout;

15 9. Ensure that outdoor spaces which are part of the premises
16 are safe, secure, and well-maintained; and

17 10. Demonstrate the basic competencies to:

- 18 a. protect and nurture children who have been abused,
19 emotionally maltreated, or neglected,
- 20 b. meet the medical and developmental needs of these
21 children,
- 22 c. support relationships between children and their
23 parents, siblings, and kin, as specified by the
24 Department of Human Services,

- d. connect children to safe, nurturing relationships,
- e. collaborate with the Department as a team member,
- f. not smoke in the home when a child is placed in the home,
- g. not smoke in the automobile when transporting a child placed in the home,
- h. have extended family or friends to provide support and child care other than, or in addition to, licensed child care paid by the Department,
- j. share parenting of the child with the parents, who may have different values and lifestyles,
- k. be willing to actively mentor the parent to help improve the parent's ability to safely care for the child, and
- l. be willing to accept placement of siblings.

B. Any person who willfully makes a false or fraudulent application or who willfully provides any false or fraudulent information in order to meet the requirements of subsection A of this section, or any person who willfully aids or abets another in making such false or fraudulent application or who willfully aids or abets another in providing any false or fraudulent information in order to assist such person in meeting the requirements of subsection A of this section, upon conviction, shall be guilty of a felony punishable by a fine not less than One Thousand Dollars

1 (\$1,000.00) and not more than Five Thousand Dollars (\$5,000.00) or
2 imprisonment in the State Penitentiary for not less than one (1)
3 year and not more than five (5) years, or by both such fine and
4 imprisonment.

5 SECTION 2. This act shall become effective November 1, 2026.

6

7 60-2-15750 CMA 01/05/26

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24